ciple is, that a contract, made by copartners, is several as well as joint, and the *assumpsit* is made by all and by each. It is obligatory on all, and on each of the partners. If, therefore, the defendant fails to avail himself of the variance, in abatement, when the form of his plea obliges him to give the plaintiff a proper action, the policy of the law does not permit him to avail himself of it, at the trial.

The course of decisions, since the case of *Rice* v. *Shute*, has been so uniform, that the principle would have been considered as too well settled for controversy; had it not lately been questioned by a judge, from whose opinions we ought not lightly to depart. That judge supposed, that if the defendant had no notice, in the previous stage of the proceedings, which might inform him of the nature of the action, he was guilty of no negligence in failing to plead in abatement, and ought not to be deprived of his defence at the trial. But the declaration never gives this notice, where the suit is brought against one only of the partners. He is always proceeded against, as if he were the sole contracting party; and if the declaration were to show a partnership contract, the judgment against the single partner could not be sustained. The cases cited by Mr. Serjeant Williams, in note 4, on the case of *Cabell* v. *Vaughan* (1 Saund. 291, n. 4), shows conclusively, that the want of notice has never been considered, since *Rice* v. *Shute*, as justifying this exception to the evidence at the trial. We think, there is no error, and the judgment is affirmed.

Judgment affirmed.

---

*318] *Peter Dox, Gerrit La Grange and Isaiah Townsend, impleaded with Gerrit L. Dox, Plaintiffs in error, *v.* The Postmaster-General of the United States, Defendant in error.

Postmasters' bonds.—Laches.

The act of congress for regulating the post-office department, does not, in terms, discharge the obligors in the official bond of a deputy-postmaster, from the direct claim of the United States upon them, on the failure of the postmaster-general to commence a suit against the defaulting postmaster, within the time prescribed by law; their liability, therefore, continues; they remain the debtors of the United States; the responsibility of the postmaster-general is superadded to, not substituted for, that of the obligors. p. 323.

The claim of the United States upon an official bond, and upon all parties thereto, is not released by the *laches* of the officer, to whom the assertion of this claim is intrusted by law; such *laches* have no effect whatsoever on the right of the United States, as well against the sureties, as the principal in the bond. p. 325.

United States *v.* Kirkpatrick, 9 Wheat. 720, re-affirmed.

This case was brought up from the Circuit Court of the United States for the Southern District of New York, in the second circuit, upon a certificate of the judges of that court, that they disagreed on certain points, set forth in the certificate.

The cause was commenced in the district court of the United States for the northern district of New York, and removed by writ of error, to the circuit court. The following were the points of disagreement: 1st. Whether the district court had jurisdiction of the cause? 2d. Whether, by the facts appearing on the record, and admitted by the pleadings, or found by the jury, the sureties are exonerated, or discharged from their liability upon the